

1 _____ JOINT RESOLUTION NO. _____
2 INTRODUCED BY _____

4 A JOINT RESOLUTION OF THE SENATE AND THE HOUSE OF REPRESENTATIVES OF THE STATE OF
5 MONTANA REQUESTING AN INTERIM STUDY TO CONSIDER REDUCING THE NUMBER OF ASSOCIATE
6 JUSTICES OF THE MONTANA SUPREME COURT FROM SIX TO FOUR; AND REQUIRING THAT THE
7 FINAL RESULTS OF THE STUDY BE REPORTED TO THE 70TH LEGISLATURE.

9 WHEREAS, Article VII, section 3, of the Montana Constitution provides for a five-member Montana
10 Supreme court but allows the Legislature to increase the number of associate justices from four to six; and

11 WHEREAS, the 1979 Legislature enacted House Bill No. 286 to increase the size of the court from four
12 to six associate justices; and

13 WHEREAS, the 1987 Legislature enacted Senate Bill No. 161 to remove a provision from the 1979 law
14 that would have terminated the increased size of the court; and

15 WHEREAS, bills proposing returning the number of associate justices to four have been considered at
16 least twice since 1987.

18 NOW, THEREFORE, BE IT RESOLVED BY THE SENATE AND THE HOUSE OF REPRESENTATIVES OF
19 THE STATE OF MONTANA:

20 That the Legislative Council be requested to designate an appropriate interim committee or statutory
21 committee, pursuant to section 5-5-217, MCA, to study the workload of the Montana Supreme Court to
22 determine whether the court's workload requires six associate justices.

23 BE IT FURTHER RESOLVED, that the committee review:

(1) the debate during the constitutional convention to determine the delegates' intent when drafting and adopting Article VII, section 3, of the Montana Constitution;

26 (2) the legislative history of HB 286 and SB 161 and subsequent legislation in 1995 and 2023 that
27 proposed reducing the number of associate justices; and

28 (3) performance measures, caseload statistics and other information the committee finds relevant

1 to determine the court's current workload and future needs.

2 BE IT FURTHER RESOLVED, that all aspects of the study, including presentation and review
3 requirements, be concluded prior to September 15, 2026.

4 BE IT FURTHER RESOLVED, that the final results of the study, including any findings, conclusions,
5 comments or recommendations of the appropriate committee, be reported to the 70th Legislature.

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